



Australian Government

Department of the Prime Minister and Cabinet

ONE NATIONAL CIRCUIT
BARTON

FOI

Reference: FOI/2022/045

FREEDOM OF INFORMATION ACT 1982

REQUEST BY: Dr Richard McLean

**DECISION BY: Ms Petra Gartmann
Assistant Secretary
Legal Policy Branch**

Dr Richard McLean

By email: richarddrawsstuff@gmail.com

Dear Dr McLean

I refer to your email of 7 February 2022 in which you made a request to the Department of the Prime Minister and Cabinet (the **Department**) under the *Freedom of Information Act 1982* (the **FOI Act**) in the following terms:

I request all information government agencies hold on me please

Please note we do not hold records of government agencies other than the Department. We have therefore treated your request as asking for information about you that is contained in documents held by the Department.

Authorised decision-maker

I am authorised to make this decision in accordance with arrangements approved by the Department's Secretary under section 23 of the FOI Act.

Decision

I have decided to refuse your request under section 24A(1)(b) of the FOI Act, on the basis that the Department has taken all reasonable steps to locate the documents you have requested, and those documents cannot be found or do not exist.

In making this decision, I have had regard to the following material:

- the FOI request;
- searches undertaken in relation to your request;
- the FOI Act; and
- the Guidelines issued by the Australian Information Commissioner under s 93A of the *Freedom of Information Act 1982* (the **FOI Guidelines**).

Reasons

Section 24A(1) of the FOI Act provides that:

An agency or Minister may refuse a request for access to a document if:

(a) all reasonable steps have been taken to find the document;

and

(b) the agency or Minister is satisfied that the document:

(i) is in the agency's or Minister's possession but cannot be found; or

(ii) does not exist.

The Department conducted department-wide keyword searches of its email and filing systems for the documents you requested. After extensive reviews of these search results, no documents relevant to your request were identified. Accordingly, I am satisfied that all reasonable steps have been taken to find documents relevant to your request, and that the requested documents cannot be found or do not exist. I have therefore decided to refuse your request under section 24A(1)(b) of the FOI Act.

Review rights

Information about rights of review is available at <https://www.oaic.gov.au/freedom-of-information/reviews-and-complaints/>.

Complaint rights

You may make a complaint to the Information Commissioner about the Department's actions in relation to this request. Making a complaint about the way the Department has handled an FOI request is a separate process to seeking review of the Department's decision. Further information about how to make a complaint is available at <https://www.oaic.gov.au/freedom-of-information/reviews-and-complaints/make-an-foi-complaint/>.

Yours sincerely



Petra Gartmann
Assistant Secretary
Legal Policy Branch
14 April 2022